

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection against the AYUNTAMIENTO DE SAN CRISTÓBAL DE LA LAGUNA with NIF P3802300H (hereinafter, the complained party), and noting indications of a possible breach of the regulations within the scope of the competencies of the Spanish Agency for Data Protection, actions were initiated under file number EXP202303530.

In accordance with the provisions of Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the complaint was forwarded to the responsible party or to the Data Protection Officer that may have been designated, requesting that they send to this Agency the information and documentation indicated.

The transfer was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) via electronic notification on March 17, 2023, as evidenced by the acknowledgment of receipt in the file.

On May 7, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

SECOND: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the aforementioned LOPDGDD.

In the context of the investigative actions, an information request was sent to the complained party regarding the complaint indicated in the first section, asking them to submit to this Agency the information and documentation specified within ten working days.

THIRD: The aforementioned information request was notified in accordance with the rules established in the LPACAP.

On January 22, 2024, the request was electronically delivered to the complained party, as evidenced by the acknowledgment of receipt in the file.

After the deadline had passed without this Agency receiving any response from the complained party, the request was sent again electronically, being received by the responsible party on February 14, 2024, as evidenced by the acknowledgment of receipt in the file.

FOURTH: Regarding the requested information, the complained party has not submitted any response to this Spanish Agency for Data Protection.

FIFTH: On March 27, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the complained party for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

The initiation agreement was received by the complained party on April 1, 2024, as evidenced by the acknowledgment of receipt in the file.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the deadline granted for the submission of allegations had passed, it was confirmed that no allegations had been received from the complained party.

Article 64.2.f) of the LPACAP - a provision of which the complained party was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts underlying the accusation, the infringement of the GDPR attributed to the complained party, and the sanction that could be imposed. Therefore, considering that

the complained party has not made any allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered, in this case, a proposal for resolution.

In light of all that has transpired, the Spanish Agency for Data Protection considers the following facts proven in this procedure,

PROVEN FACTS

FIRST: The information requests indicated in the second and third backgrounds were notified in accordance with the provisions of the LPACAP.

SECOND: The complained party has not responded to the information requests made by this Agency within the deadlines granted for this purpose.

LEGAL GROUNDS

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/6

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation Breached

In accordance with the facts presented, it is considered that the respondent has not provided the information requested by the Spanish Agency for Data Protection.

With the conduct indicated by the respondent, the investigative power conferred to supervisory authorities by Article 58.1 of the GDPR, in this case, the AEPD, has been obstructed.

Therefore, the facts described in the section "Proven Facts" are deemed to constitute an infringement, attributable to the respondent, for violating Article 58.1 of the GDPR, which states that each supervisory authority shall have, among its investigative powers:

"a) to order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information required for the performance of its functions;"

III

Classification and Qualification of the Infringement

The facts presented are deemed to constitute an infringement, attributable to the respondent.

This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: "failure to provide access in violation of Article 58, paragraph 1."

The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of a company, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/6

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following

conduct as very serious:

“ñ) Failure to provide access to the personal data, information, premises, equipment, and processing means required by the competent data protection authority for the exercise of its investigative powers.”

IV

Imposed Sanction

Article 83.7 of the GDPR provides the following:

“Without prejudice to the corrective powers of supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Furthermore, Article 77 “Applicable regime for certain categories of controllers or processors” of the LOPDGDD provides the following:

“1. The regime established in this article shall apply to the processing for which they are responsible or for which they are processors:

(...)

c) The General Administration of the State, the administrations of the autonomous communities, and the entities that comprise the Local Administration.

(...)

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be taken to cease the conduct or to correct the effects of the infringement that has been committed, except for that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which it hierarchically depends, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to the provisions of the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on the disciplinary or sanctioning regime that is applicable.

Furthermore, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for the processing is evidenced...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/6

If they have not been duly addressed, the resolution imposing the sanction will include a reprimand naming the responsible official and will order publication in the corresponding Official State or regional Gazette.

4. The resolutions related to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions taken and the resolutions issued under this article will be communicated to the Ombudsman or, as applicable, to the analogous institutions of the autonomous communities.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the CITY COUNCIL OF SAN CRISTÓBAL DE LA LAGUNA, with NIF P3802300H, has infringed the provisions of Article 58.1 of the GDPR, an infringement classified in Article 83.5 of the GDPR.

SECOND: TO ORDER the CITY COUNCIL OF SAN CRISTÓBAL DE LA LAGUNA, with NIF P3802300H, to provide, in accordance with the investigative power set forth in Article 58.1.a) of the GDPR, the information requested in the requirements made within the framework of the proceedings

numbered EXP202303530 and referred to in the background of this resolution, within ten working days from the date this resolution becomes final and enforceable.

It is warned that failure to comply with the requirements of this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, which may lead to the initiation of further administrative sanctioning procedures.

THIRD: TO NOTIFY this resolution to the CITY COUNCIL OF SAN CRISTÓBAL DE LA LAGUNA.

FOURTH: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency does not become aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

938-16012024

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es